

CODE

Constitution

Draft for member review | 29 September 2026

Plain language summary

Sets council, the fixed election day, the ban on voting on your own pay, and the rule that members, not council alone, can amend it. A resolution should not be able to erase the checks. Amendment takes a majority of all electors.

Working draft. Not adopted law. Not a legal opinion. Laws cited were read on the Justice Canada consolidations current to 21 September 2026, the Charter and Constitution Act, 1982 consolidation, and the Treaty No. 8 text published by Crown-Indigenous Relations and Northern Affairs Canada. This draft is not a legal opinion.

Part 1. Purpose and authority

1.1 This constitution sets how the First Nation governs itself so that no one person can spend public money, award a benefit, or change the rules alone.

1.2 It is made as the custom of the band for the purpose of the Indian Act, subsection 2(1), definition of council of the band, paragraph (d). That paragraph applies to a band that is not under section 74 of the Indian Act and is not named in the schedule to the First Nations Elections Act.

If the Minister has ordered elections under Indian Act section 74, or if the First Nation is named in the schedule to the First Nations Elections Act, section 3, this constitution cannot replace that statute. Using it as if it did would be legally shaky. The usable path is to follow the statute that applies, or, under First Nations Elections Act section 42, to leave that schedule only with a community election code approved by a majority of votes cast in a vote in which a majority of electors participate.

1.3 Indian Act subsection 2(3) says that, unless the context otherwise requires or the Act otherwise provides, a power of the band is not exercised unless a majority of the electors consent, and a power of council is not exercised unless a majority of the councillors present at a meeting duly convened consent. This constitution uses those counts.

1.4 This constitution does not surrender reserve land and does not designate land. Absolute surrender and designation sit under Indian Act section 38. A resolution that purports to surrender or designate land, other than through section 38, is void.

1.5 Constitution Act, 1982, subsection 35(1), says: "The existing aboriginal and treaty rights of the aboriginal peoples of Canada are hereby recognized and affirmed." This constitution does not amend Treaty No. 8, made 21 June 1899. Treaty No. 8 states that the Indians "shall have right to pursue their usual vocations of hunting, trapping and fishing throughout the tract surrendered as heretofore described, subject to such regulations as may from time to time be made by the Government of the country, acting under the authority of Her Majesty, and saving and excepting such tracts as may be required or taken up from time to time for settlement, mining, lumbering, trading or other purposes."

1.6 A self-government agreement given effect by an Act of Parliament, such as the Nisga'a Final Agreement, is a different instrument. This constitution does not copy that agreement and does not claim the powers in it. The First Nations Financial Transparency Act, section 2, excludes a band that is party to a comprehensive self-government agreement given effect by an Act of Parliament. Until there is such an agreement, the transparency statute still applies.

1.7 Canadian Charter of Rights and Freedoms, subsection 15(1), says: "Every individual is equal before and under the law and has the right to the equal protection and equal benefit of the law without discrimination and, in particular, without discrimination based on race, national or ethnic origin, colour, religion, sex, age or mental or physical disability." Whether that section binds a particular council decision is for a court. This constitution adopts that equality rule as its own rule so a member does not have to win that argument first.

Part 2. Definitions

2.1 In this constitution:

- Appeal body means the three people elected under the appeals instrument.
- Chief means the person elected to that office under the election code.
- Council means the chief and the councillors in office.
- Councillor means a person elected to that office under the election code.
- Off-reserve councillor means the councillor elected to the one position that only an elector who ordinarily resides off reserve may hold.
- Ordinary residence means the place an elector ordinarily lives on the day a nomination is signed.
- Elector has the meaning in Indian Act subsection 2(1): a person registered on a Band List, of the full age of eighteen years, and not disqualified from voting at band elections.
- Immediate family means a spouse, a common-law partner as defined in Indian Act subsection 2(1), a child, a parent, or a sibling. Child includes a legally adopted child and a child adopted in accordance with Indian custom, as the Act defines child.
- Member means a person whose name appears on the Band List, or who is entitled to have it appear there, whether the person lives on reserve or off reserve.
- Records officer means the employee designated in writing to keep the public record. If no one is designated, the appeal body must designate one within 14 days.
- Resolution means a decision passed at a council meeting that meets the quorum and notice rules in the council procedure instrument, numbered, and signed by the councillors who voted for it.

2.2 A word defined here has that meaning in every instrument in this set.

Part 3. Who it binds

3.1 This constitution binds every member, on reserve or off reserve, and every employee and contractor when that person handles the First Nation's money, housing, employment, or a program.

3.2 It does not regulate child welfare, policing, or the taxation of reserve land. Those need their own instruments. An intoxicant by-law may be made only under Indian Act section 85.1, and only after a majority of the electors who vote at a special meeting called for that purpose assent. This constitution is not that by-law.

Part 4. Council

4.1 Council is one chief and four councillors. One of the four is the off-reserve councillor. The other three councillor positions have no residence qualification. Every elector may vote for every position. A council resolution cannot change the number or abolish the off-reserve position.

The residence rule is a qualification for one office. It is not a limit on who may vote. *Corbiere v. Canada*, cited in the bill of rights, is about a residency bar on voting under Indian Act subsection 77(1). A qualification for holding one seat is a different question. A lawyer should review it against Charter subsection 15(1), quoted in section 1.7, before members vote.

4.2 Quorum is three people. That is a majority of the five positions, and it is never fewer than three. A vacant seat still counts toward the five. If fewer than three people hold office, they may meet only to ask the electoral officer to call the by-election in the election code. They must not spend, hire, or allocate a benefit. Where quorum is met, a power of council is not exercised unless a majority of the councillors present at that duly convened meeting consent, as Indian Act subsection 2(3)(b) requires. A text, an email, or a phone call is not that meeting.

4.3 The term is four years. It starts at noon on the 14th day after election day and ends at noon on the next election day. A person may serve two consecutive terms in the same office, and must then stay out of that office for one full term. The electoral officer must reject a nomination that breaks this rule, in writing, within 2 days of the close of nominations. Votes for a rejected nominee are not counted.

4.4 Election day is the second Saturday in June. Council must not postpone it. A resolution that postpones election day is void. Each councillor who voted for it must not move a money resolution for 90 days. The appeal body must post their names within 14 days.

4.5 The electoral officer may set a new election day only if voting cannot be held on the fixed day because of a fire, flood, or an order of a public health officer or a court. The new day must be within 30 days. Written reasons must be posted within 2 days. The term of the sitting council still ends on the original day. A delay must not lengthen a term.

4.6 A chief or councillor must not move, second, debate, or vote on a resolution that sets or pays that person's own remuneration, honorarium, travel, or a contract with that person or with their immediate family. The person must leave the room before the item is called. A vote cast in breach of this section is void, the resolution is void, and any sum paid under it must be repaid within 30 days. If it is not repaid, the person is not eligible to sit, or to be paid, until it is repaid. The appeal body must post the breach within 7 days of learning of it.

Part 5. How laws are made

5.1 Council may pass a resolution on administration. Council may not amend this constitution, the bill of rights, or a protected rule.

5.2 Indian Act subsection 81(1) lets council make by-laws "not inconsistent with this Act or with any regulation made by the Governor in Council or the Minister." A by-law that conflicts with the Indian Act or the Criminal Code fails that test. Paragraph 81(1)(r) limits a by-law penalty to "a fine not exceeding one thousand dollars or imprisonment for a term not exceeding thirty days, or both." This constitution does not create an offence and does not authorize a greater penalty.

5.3 Indian Act subsection 81(3) says a contravention of a band by-law may be restrained by court action at the instance of the band council. That route exists only if the text has actually been made as a by-law. It is not a promise that police will lay a charge. The internal consequences in this set apply whether or not a charge is laid.

5.4 Indian Act subsection 83(1) lets council, subject to the approval of the Minister, make money by-laws, including under paragraph (b) "the appropriation and expenditure of moneys of the band to defray band expenses." Subsection 83(4) says the Minister may approve the whole or a part only. Member approval does not replace the Minister's approval. If council wants a spending rule to be a section 83 by-law, council must send it to the Minister within 30 days of the member vote and must post the Minister's reply within 7 days of receiving it. Until that approval, the rule still binds as a condition of office and employment under this constitution.

Part 6. Checks that do not depend on goodwill

6.1 The band money instrument, the spending instrument, the right-to-information instrument, the whistleblower instrument, and the appeals instrument are part of this constitution's structure. Council must not suspend them by resolution.

6.2 The appeal body is three electors who are not on council, not employees, and not immediate family of a person on council. Electors elect them for three years on the same day as council, or, for the first body, within 60 days after this constitution comes into force. Quorum is two. Council must not appoint them. A council appointment is void.

6.3 If electors do not elect an appeal body, the sitting appeal body continues for not more than 90 days. If there is none, any 10 electors may call the vote on 21 days' notice. Until the body exists, the records officer must hold complaints unopened for not more than 30 days and then post a notice that no body is in office. A complaint is not decided by the chief.

Part 7. Amendment

7.1 Council must not amend this constitution by resolution. A resolution that purports to amend it is void on the day it is signed. A person who signs that resolution must not move a money resolution for 90 days. The appeal body must post the breach within 14 days.

7.2 An amendment passes only if a majority of all electors vote yes. A majority of the ballots cast is not enough. The Indian Act, section 2(3)(a), uses that same count for a power of the band: consent of a majority of the electors.

7.3 The electoral officer must post the full proposed text at least 45 days before the vote and must certify the elector list 30 days before the vote. A vote held on shorter notice is void.

7.4 The electoral officer must post the count within 3 days. If the count in 7.2 is not met, the amendment does not come into force.

Part 8. Review and coming into force

8.1 The appeal body must review this constitution every 4 years, counted from the day it comes into force, and must post a written report within 60 days after that anniversary. The report does not amend this constitution.

8.2 Within 90 days of that report, council must either put a recommended amendment to the electors under Part 7, or post written reasons for not doing so. If council does neither, the appeal body must post that omission on day 91, and council honoraria stop on day 91 until one of those two things is done.

8.3 this constitution comes into force on the day after the electors approve it under Part 7. Until that day it is a draft. It does not repeal an election code, by-law, or policy already in force.

8.4 Where a law already in force sets its own replacement rule, this constitution replaces that law only if the electors also meet that rule. A lawyer should compare the two texts before the vote.

8.5 The records officer must keep the adopted text posted for at least 10 years. If it is not posted by day 10 after the vote, the records officer must post a written reason that day, and the appeal body must appoint a replacement records officer within a further 10 days.

This is not a legal opinion. A lawyer, or a person whose work is First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or another federal law is of no effect to the extent of the conflict. Police and Crown prosecution of a band by-law is uneven. The Minister's steps under the First Nations Financial Transparency Act, section 13, are discretionary. The consequences in this instrument are internal for that reason.